

**United States Department of Agriculture
Limited Source/Brand Name Justification
FAR 13.106-1(b)(1) – Simplified Acquisitions
Control No. (if applicable) _____**

1. Identification of the agency and the contracting activity.

APHIS-VS-FADDL-NBAF-DSS

2. Description of supply or service required to meet the agency's needs.

Servicing of Thermo-Scientific Talos F200C G2 Electron Microscope located at NBAF Manhattan-KS, SN: 9956201

3. The rationale or circumstances for limiting competition.

The Thermo-Scientific Talos F200C G2 Electron Microscope located at NBAF Manhattan-KS, SN: 9956201, requires servicing as it does not function properly and has error messages upon operation. Due to the initial cost to purchase this microscope and its integration into the structural and engineering components of NBAF, it is important to make every reasonable attempt at bringing this equipment back to operational status. With the transition of Plum Island to NBAF occurring, it will be vital to be able to ensure continuity of investigating and diagnosing foreign animal diseases between locations.

4. A description of the market research conducted and the results or a statement of the reason market research was not conducted.

Upon research, no other vendor to my awareness, is able to provide service to this electron microscope.

5. Estimated price, including all options, if applicable.

[REDACTED]

This quote includes labor and travel for the Thermo-Fisher microscope engineer to provide 10 days of service to the electron microscope at NBAF.

6. Recommended source(s).

Molecular Devices, quote number: National Argo & Biodefense 9441KPB-02.04.2025

Certifications

Supporting data that is the responsibility of technical or requirements personnel and which form the basis for this justification are accurate and complete to the best of my knowledge.

Thomas Seeley, Microbiologist, APHIS-VS-FADDL-NBAF-DSS

Insert Name of Program or Technical Personnel

Insert Title of Program/Technical Personnel

The information contained in this justification is accurate and complete to the best of my knowledge and belief and in accordance with Federal Acquisition Regulation 13.106-1(b)(1), I hereby determine the circumstances described above deem only one source, or limited sources, reasonably available and competition is precluded for the reasons indicated in this document.

KATHLEEN MELBY

Digitally signed by KATHLEEN

MELBY

Date: 2025.04.29 10:26:13 -06'00'

Insert Name of Contracting Officer

Contracting Officer

Notes and Guidance. Delete these Notes prior to finalizing document for signature

For acquisitions greater than the micro-purchase threshold but less than the Simplified Acquisition Threshold (SAT) the Contracting Officer may solicit from one source only if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand name, etc.). Contracting Officers must document the rationale for soliciting from a single source, including brand name in accordance with FAR 13.106-1(b)(1)(i) and FAR 13.106-3(b)(3)(i).

Program personnel are advised to work with contracting personnel early on in order to promote and provide for full and open competition to the maximum extent practicable. In circumstances permitting other than full and open competition, program personnel shall provide necessary information to contracting personnel to support and document the circumstances limiting competition through the use of this form

Advance planning. Contracting without providing for full and open competition shall not be justified on the basis of (1) a lack of advance planning by the requiring activity or (2) concerns related to the amount of funds available to the agency or activity for the acquisition of supplies or services.

Brand Name. Items peculiar to one manufacturer can be a particular brand name, product, or feature of a product, peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer. Brand name specifications shall not be used unless the particular brand name, product or feature is essential to the Government's requirements and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet the Agency's needs.

Posting. When an acquisition contains brand name specifications, the Contracting Officer shall include the justification required by FAR [13.106-1\(b\)](#) or [13.501](#) with the solicitation when synopsisizing in the GPE (actions exceeding \$25,000) or displaying in a public place (actions exceeding \$15,000 but not expected to exceed \$25,000), as required by FAR 5.102(1)(6).

Screening. Before posting the justification, in accordance with FAR 6.305(e) and 24.202, the Contracting Officer is responsible to redact any information that is exempt from disclosure under Freedom of Information Act or information proprietary to the contractor.

Signatures. After review and completion by the Program Office and Contracting Officer, the Word document shall be converted to an Adobe PDF file and routed for electronic signatures. Signature blocks shall include dates.